

26PR00176 Estate of Jeffrey Dwayne Collman

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-18

Motion: Petition for Preliminary Distribution

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Tentative Ruling: Estate of Jeffrey Dwayne Collman

Case Number

26PR00176

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/18/2026 - 09:00

Nature of Proceedings

Petition for Preliminary Distribution

Tentative Ruling

Probate Notes:

The following must be submitted:

Supplement re: requested distribution amount. The court cannot grant a petition for preliminary distribution that requests more than 50% of the estate for distribution (Prob. Code, § 11623.) Please submit supplement explaining how the Court has authority to make a preliminary distribution above 50% of the estate value.

Supplement re: Statutory Compensation. The request for attorney's fees was not properly made pursuant to Probate Code section 10830. A petition for interim fees may be made by the attorney pursuant to that section, but CRC, Rule 7.701 prescribes the boundaries for granting such a request:

(1) the allowance must be low enough to avoid the possibility of over-payment; (2) must be based on estimated statutory compensation;

(3) must be in proportion to work actually performed; and

(4) must be based upon a detailed description of ordinary services performed and remaining to be performed.

None of those metrics are met in the petition.

Additionally problematic is that it does not appear the court can award the requested attorney's fees, because the amount requested will, in the aggregate, exceed 15% of the payments made from the Federal restitution fund at issue. (34 U.S.C.A. § 20144(f)(1). ["After November 21, 2019, no attorney representing a 9/11 related victim of state sponsored terrorism shall charge, receive, or collect, and the Special Master shall not approve, any payment of fees and costs that in the aggregate exceeds 15 percent of any payment made under this section after November 21, 2019.]") The Supremacy Clause of the United States Constitution would likely be triggered if this Court ordered attorney's fees paid as requested.

A supplement is required to complete the requirements in the Probate Code and Rules of Court, and to address how the Court has authority to award above 15% of the restitution fund.

If the documents curing these deficiencies are not processed by 8:00 am on August 17, it is recommended that the matter be continued to a date set by the Court, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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